

The Life Insurance Corporation of India Information Technology Specialist Group (Selection, terms and conditions of service and payment of Allowance) Rules, 2007

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The Life Insurance Corporation of India Information Technology Specialist Group (Selection, terms and conditions of service and payment of Allowance) Rules, 2007

Rule

THE-LIFE-INSURANCE-CORPORATION-OF-INDIA-INFORMATION-TECHNOLOGY-SPECIALIST-GROUP-SELECTION-TERMS-AND-CONDITIONS-OF-SERVICE-AND-PAYMENT-OF-ALLOWANCE-RULES-2007 of 2007

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The Life Insurance Corporation of India Information Technology Specialist Group (Selection, terms and conditions of service and payment of Allowance) Rules, 2007

Published vide Notification No. G.S.R. 304(E), dated 25th April, 2007

Ministry of Finance

(Department of Economic Affairs)

(Insurance Division)

G.S.R. 304(E). - In exercise of the powers conferred by Section 48 of the Life Insurance Corporation Act, 1956 (31 of 1956

), the Central Government hereby makes the following rules regulating method of selection, terms and conditions of service and Payment of Allowance of Information Technology Specialist Group of the Insurance Corporation of India, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Life Insurance Corporation of India Information Technology Specialist Group (Selection, terms and conditions of service and payment of Allowance) Rules, 2007.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Application.

- These rules shall apply to the whole-time salaried employees of the Corporation in India only.

3.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Life Insurance Corporation Act, 1956 (31 of 1956

);

(b)

"Competent authority" means the Chairman of the Corporation;

(c)

"Committee" means the committee formed by the Chairman.

(d)

"Employee" means an employee of the Life Insurance Corporation of India and includes any person who became an employee of the Corporation on the appointed day under the Act;

(e)

"Staff Rules" means the Life Insurance Corporation of India (Staff) Regulation, 1960;

(f)

"The Corporation" means the Life Insurance Corporation of India.

All words and expressions used herein and not defined but defined in the Life Insurance Corporation of India (Staff) Regulations, 1960, Life Insurance Corporation of India, Class I Officers (Revision of Terms and Conditions of Service) Rules, 1985, Life Insurance Corporation of India, Class III and Class IV Employees (Revision of Terms and Conditions of Service) Rules, 1985, Life Insurance Corporation Act, 1956 or the Insurance Act, 1938 or the Insurance Rules, 1939 or the Life Insurance Corporation Regulations, 1959 shall have respectively the meanings assigned to them in those Acts or Rules or Regulations, as the case may be.

4.

Structure of the Information Technology Specialist Group.

- The Group, in ascending order of hierarchy, shall consist of Developers, Business System Analysis and Project Leaders. The employees shall be posted at Software Development Center at Central Office, Centralized Projects at Central Office and at other designated centers where Software Development Project teams are located now or in future.

5.

Eligibility.

- Confirmed employees in the cadre of Higher Grade Assistant and above will be eligible for the following posts:

Employees in the Cadre of

Eligible for the post of

(i) Higher Grade Assistant (HGA), Assistant Administrative Officer (AAO), Administrative Officer (AO)

Developer

(ii) Administrative Officer* and Assistant Divisional Manager (ADM)

Business System Analyst

*Only those Administrative Officers are eligible who have completed three years as Developer.

(iii) Assistant Divisional Manager** and above

Project Leader

**Only those Assistant Divisional Managers are eligible who have completed three years as Business System Analyst.

6.

Selection Procedure.

(1)

The selection for the officials who are working as Developer, Business system Analyst and Project leader in Central office software Development center, centralized information Technology projects shall be made based on their work record and interview.

(2)

The selection for the other officials shall be made based on their work record, written test and interview to ascertain the aptitude and domain of technical knowledge.

7.

Conditions of Selection.

(1)

An official selected under these rules shall be required to execute an agreement with the Corporation, undertaking to serve the Corporation for a minimum period of five years. If he/she leaves the services of the Corporation before the expiry of the bond period, he/she shall be liable to pay an amount of liquidated damages of Rupees five lakhs. The amount of liquidated damages will not be reduced proportionately, even if the official have served the Corporation for a part of the bond period.

(2)

In addition to recovery of liquidated damages, the Corporation will also recover from those leaving its service before completion of the bond period, the entire amount of expenses on training given to them, if any.

(3)

After the amount of recovery has been determined and advised, the Corporation may charge interest at the ruling bank rate, in case the payment is not made within a maximum period of two months. The Corporation will have the right to adjust the recovery against the amount of superannuation dues payable to the officer leaving its service before the expiry of the bond period.

8.

Designation of Information Technologist Specialists.

(1)

In respect of rule 6 above, the selection to the post of Developer, Business System Analyst, Project Leader shall be based on the performance in the Test/Interview and recommendations of the Committee consisting of Executive Director (Personnel), Executive Director (Information Technology/Business Process Re-engineering) and any other person(s) nominated by the chairman.

(2)

In respect of those Administrative Officers and Assistant Divisional Managers who are already members of information technology specialist Group and eligible for the selection to the post of Business System Analyst and Project Leader, respectively, as per rule 5 above, shall be so selected by the Competent Authority or any authority delegated by him on the basis of Interview and recommendation of the above Committee.

(3)

The cases of employees not selected as above for the elevated post will be reconsidered for selection through the same mechanism on half-yearly basis.

9.

Payment of allowance.

(1)

In addition to the salary and other benefits applicable to the cadre, the selected personnel on joining the Information Technology Specialist Group and till the period he remains there, shall be paid a fixed allowance as under, which shall not count as basic pay for any purpose:

(i) Developer

- Rs.10,000/- per month

(ii) Business System Analysts

(BSAs)

- Rs. 15,000/- per month

(iii) Project Leader

- Rs. 20,000/- per month

(2)

Payment of allowance as specified above will be applicable from the date the employee takes over charge in the concerned post. However, newly selected personnel in the above Group shall not be paid the allowance for the first six months. His/her performance will be reviewed at the end of six months and if found satisfactory, allowance shall be sanctioned from the date of joining the Group.

(3)

The functional allowance of Rs. 400/- p.m. or Rs.500/- p.m., as the case may be, drawn by Higher Grade Assistant (Programmer)/Programmers or System Analysts or Programmers-cum-System Analysts in the scale of pay of Higher Grade Assistant, Assistant Administrative Officer, Administrative Officer or Assistant Divisional Manager shall not be payable on their joining the Information Technology Specialists Group.

(4)

Those employees who are posted out of Information Technology Specialist Group at some stage, if entitled for Functional Allowance applicable to the posts of Higher Grade Assistant (Programmer)/ Programmers or System Analysts or Programmers-cum-System Analysts in the scale of pay of Assistant Administrative Officer Administrative Officer or Assistant Divisional Manager shall start drawing the same from the date of their joining the department to which he/she is transferred.

(5)

The allowance shall cease to be payable to an employee /officer who has given a notice of resignation or voluntary retirement under the Life Insurance Corporation of India (Staff) Regulations, 1960 or the Life Insurance Corporation of India (Employees) Pension Rules, 1995, from the date of such notice. However, subject to the rules in this regard if such an employee/officer is allowed to withdraw the notice of resignation or voluntary retirement, the allowance may be paid, if otherwise payable, to such an employee as if the notice was not given at all.

10.

Review Mechanism.

(1)

The continuation of the allowance in the post will be based on the half-yearly review of the performance and the recommendation of the Committee. In case of employees not found eligible for continuing in the Information Technology Specialist Group on such review, the payment of allowance shall cease from the date, the employee is posted out of Information Technology Specialist Group. Further, subject to the applicability, such employees shall be governed as per sub-rule (4) of rule 9.

(2)

The selected employee working in the Information Technology Specialist Group may be posted outside the said Group by the Chairman or any authority to whom such powers are delegated by the Chairman.

11.

Where the Chairman is of the opinion that it is necessary or expedient so to do, he may, with the approval of the Central Government, by order and for reasons to be recorded in writing, relax any of the provisions of these rules with respect to

any class or categories of persons.

12.

Power to issue instructions.

- The Chairman with the approval of the Central Government may, from time to time issue such instructions as may be necessary to give effect to and carry out the provisions of these rules.

13.

Interpretation.

- Where any doubt or difficulty arises as to the interpretation of these instructions, it shall be referred to the Central Government for its decision.

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